SELLERS LEISURE
Thriftwood Country Park
Plaxdale Green Road, Sevenoaks
TN15 7PB, KENT
www.sellersleisure.com
Tel: 01732 822261

ANNUAL LICENCE AGREEMENT

for a Holiday Caravan Pitch at Dymchurch Holiday Park

FROM	1 March 2027
TO	29 February 2028

You may use the Caravan from 1 March to 30 November 2027.

This Agreement is suitable if the Caravan is already on the Park and the Park Owner and Caravan Owner(s) agree it should stay on the Park for the Agreement Period.

This Agreement is usually not suitable when the Caravan is purchased.

PART I – PARTICULARS

PARK OWNER ("WE/US/OUR" THROUGHOUT THIS LICENCE AGREEMENT)

Business name	Sellers Leisure Ltd (company number 09526458)
Address	Thriftwood Country Park, Plaxdale Green Road, Stansted, Sevenoaks, Kent
Postcode	TN15 7PB
Phone	01732 822261
Email	accounts@sellersleisure.com
Webpage	www.sellersleisure.com
Contact person	Head Office

PARK DETAILS, IF DIFFERENT FROM BUSINESS NAME, ADDRESS AND CONTACT DETAILS ABOVE

Park name	Dymchurch Holiday Park
Park address	St Marys Road, Dymchurch, Romney Marsh, Kent
Postcode	TN29 0PW
Phone	01303 905480
Email	info@dymchurchholidaypark.com
Webpage	www.sellersleisure.com/our-parks/dymchurch/
Contact person	Park Office

CARAVAN OWNER(S) ("YOU/YOUR" THROUGHOUT THIS LICENCE AGREEMENT)

Under this Licence Agreement, you are not allowed to live in the Caravan as your only or main residential home. You can only use the Caravan for holidays and recreational purposes. The 'Frequently Asked Questions' at the end of this Licence Agreement explain what we mean by this. In the space below, you must give us your only or main residential address. We will send all correspondence relating to the Caravan to the address you give us. When you sign this Agreement, and at any other time we reasonably ask, you must provide us with documents that show that you live at the address given below.

Name/s	
Address	
Postcode	
Email	
Telephone (day)	
Mobile	
Next of kin	
Next of kin phone	

Car registration number(s)	
Finance provider (if applicable) that may be the legal owner of the Caravan	

CARAVAN DETAILS

Make	
Model name/type	
Length/width	
Serial no	
Specification	EN1647 ☐ BS3632 ☐
Year of manufacture	
Current pitch on Park	
Will you be the first owner?	Y ☐ N ☐
Max. sleeping capacity	

AGREEMENT PERIOD

Agreement Period: 12 months – it does not renew automatically	**Date**
Starts: the date when you may first use your Caravan under this Agreement	1 March 2027
Ends: the date when your Agreement expires	29 February 2028

The Agreement Period is the period that the Caravan is allowed to be sited on the Pitch at the Park. This means that once the Agreement Period has expired, you must arrange with us for the Caravan to be removed from the Park on or before 29 February 2028 unless you and we enter into a new agreement. Neither you nor we have to enter into a new Licence Agreement. We will write to you at least 4 months before 29 February 2028 to tell you whether we are willing to offer you a new agreement and, if so, on what terms.

The Park is open for holidays from 1 March to 30 November. From 1 December to the end of February the Park is closed: the Caravan may stay on the Pitch, but no one may stay in it or use it for holidays. You may visit to check on it by arrangement with the Park Office.

LICENCE FEE

The Licence Fee covers the whole Agreement Period – you may use the Caravan during our 9-month season, 1 March to 30 November. Business rates, water rates and similar charges for the Park are included in the Licence Fee; we do not charge them to you separately.

Option	Amount	Payment
☐ **Option 1 – pay in full**	£3,120.00 including VAT	Paid in full by 14 January 2027
☐ **Option 2 – two instalments**	£3,120.00 including VAT	Paid as £2,000.00 by 14 January 2027, and £1,120.00 by 28 February 2027

Please tick one option. The total is £3,120 either way: paying in two instalments costs nothing extra. If you sign this Agreement after a payment date, that payment is due when you sign. If you do not tick an option, Option 1 applies. If a payment is late, we charge interest (clause 4.4).

AUTHORISED MEANS OF PAYMENT

Any payment due to us under this Agreement may be made:

- For the Licence Fee: by bank transfer to our bank account shown on your invoice. For any other charges: through the secure payment link we send you with your invoice.
- By credit or debit card in person at the Park Office. We cannot take card payments for the Licence Fee over the phone.

We operate a strict no-cash policy. We do not accept cash or cheques. We will never change our bank details by email or text: if you are told they have changed, phone us before you pay.

COMPLAINTS

We want you to enjoy your holidays. If you have any questions or problems, please contact us. Clause 16 of Part II explains how we handle complaints and disputes.

Complaints to	Head Office, Sellers Leisure Ltd, Thriftwood Country Park, Plaxdale Green Road, Stansted, Sevenoaks, Kent TN15 7PB
Email	admin@sellersleisure.com

SUMMARY OF SOME IMPORTANT TERMS OF THIS AGREEMENT

Term	Summary
Licence Fee	£3,120 including VAT either way. Option 1: paid in full by 14 January 2027. Option 2: two instalments, £2,000 by 14 January 2027 and £1,120 by 28 February 2027.
Selling or giving away the Caravan	You cannot sell or give the Caravan to anyone, including a family member, to keep on the Park. You can sell it to us (if we agree), or to anyone you choose as long as it is removed from the Park, with the disconnection and removal arranged through us. See clauses 6 and 7.
Right to replace Caravan	Your right to replace the Caravan under this Agreement on the Pitch is limited to replacement only following destruction by fire, natural disaster or other similar occurrence.
No use as an only or main residence	You can only use the Caravan for holiday and recreational purposes. You must not use the Caravan as your only or main residential home. Please see the Frequently Asked Questions at the end of this Licence Agreement for further explanation of what we mean by this. If you do use the Caravan as your only or main home, then you will be breaking the terms of this Licence Agreement. Your obligations are set out in clause 4.2 of the Licence Agreement and the consequences of breaking them are set out in clauses 10.1 and 10.2.
You are entitled to use the Caravan	From: 1 March To: 30 November
Park Rules	You must comply with the Park Rules (copy attached).
Insurance	You must insure the Caravan at your own expense in accordance with clauses 4.5 and 4.6 of the Licence Agreement. In particular, your insurance must cover all the specified risks and the minimum values. The Market Value Option in clause 4.5.6 applies to this Agreement. Unless you insure through a product we promote or introduce, we charge £42 including VAT (£35 plus VAT) each year to check your insurance (clause 4.7).
Refunds	If this Agreement ends early, any refund of the Licence Fee is on a sliding scale, and there is no refund if it ends on or after 1 July, unless we have broken our obligations (clause 12.7.1). If it ends before 1 March 2027, you get the whole fee back. If we re-let your Pitch, we refund what we receive for it. See clause 12.7.
Hiring out	Hiring out the Caravan on the Park is not permitted.

PITCH SERVICES

Service	Included within the Licence Fee	Available at additional charge (see clause 3.3)
Water	☑	☐
Electricity	☐	☑
Gas	☐	☑
Grounds maintenance	☑	☐
Sewerage	☑	☐
Waste management	☑	☐

We charge for electricity at no more than the price we pay for it, with no profit, plus the separate administration charge shown below. We will never charge you more than the law allows.

We read your meter monthly. Administration charge for reading your meter and preparing your bill (clause 3.3.2): £3 including VAT on each bill. It is shown separately on your bill and is not part of the price of the electricity.

PERSONAL DATA

Any personal data you give to us will be processed in accordance with the law.

By entering into this Licence Agreement, you agree we may use the information for any purpose related to this Agreement, including providing you with information about the Park. To help us do this, we may share it with an associated business or with third parties if they do work for us or if the law requires us to do so.

Please tick here if you would also like us to contact you with information about goods and services which we feel may be of interest to you: ☐ Email ☐ Telephone ☐ SMS/text message

You may ask us to stop contacting you with this information at any time. We will not supply the data to third parties for them to use in their marketing without your further permission. We will only retain your data whilst we still need it. Please ask us if you would like further information about how long we will keep your data. How we use your personal data is set out in our Privacy Notice at www.sellersleisure.com/privacy-policy/.

If you have any concerns about your personal data, please speak to us and if necessary use the complaints procedure set out in this Agreement. You also have the right to complain to the Information Commissioner (https://ico.org.uk).

PART II – TERMS AND CONDITIONS OF THIS LICENCE AGREEMENT

1 MEANING OF EXPRESSIONS USED IN THIS LICENCE AGREEMENT AND INTERPRETATION

1.1 "Agreement Period" means the period for which this Agreement lasts, shown as the Agreement Period in Part I.

1.2 "Caravan" means the caravan holiday home described in Part I.

1.3 "Family Member" means your spouse, civil partner, parent, grandparent, child, grandchild, brother or sister, the spouse of any of those persons and treating the stepchild of any person as his/her child.

1.4 "Hire/Hiring out" means letting people other than you use the Caravan for holidays and recreational purposes in return for payment (whether in cash or in kind).

1.5 "Independent Surveyor" means the surveyor appointed under clause 16 of this Licence Agreement for the purpose of determining any dispute under clause 8 or for the purpose of assessing the value of the Caravan under clause 12.

1.6 "Park Rules" means the rules of conduct and practice issued by us from time to time and applicable to the use of the Caravan and other facilities at the Park. A copy of the Park Rules in force at the date of this Licence Agreement is attached.

1.7 "Pitch" does not include any part of the Park except that on which the Caravan stands.

1.8 "Pitch Services" means the services that we provide for you and which are listed in Part I.

1.9 "Site Licence" means the caravan Site Licence applicable to the Park issued to us by the local authority under Section 3 of the Caravan Sites and Control of Development Act 1960 (or in the case of Northern Ireland under Section 3 of the Caravans (Northern Ireland) Act 1963) and other relevant statutes.

1.10 "We/our/us" means the Park Owner described in Part I.

1.11 "Working Days" means Monday, Tuesday, Wednesday, Thursday and Friday, unless these are Bank Holidays.

1.12 "You/your" means the Caravan Owner(s) described in Part I. Where there is more than one person described as the Caravan Owner in this Licence Agreement, each is fully responsible for the obligations under this Licence Agreement.

1.13 References to taxes and laws are references to them as extended, amended or replaced from time to time.

2 PERMISSION TO KEEP THE CARAVAN ON THE PITCH

2.1 We allow you throughout the Agreement Period to keep the Caravan on the Pitch at the Park and to use it for holiday and recreational purposes during the period shown in Part I, provided you comply with your obligations in this Licence Agreement.

2.2 This Licence Agreement is personal to you and you cannot assign or transfer it to any other person. Clauses 6 and 7 of this Agreement explain what you may and may not do if you want to sell or give away the Caravan.

2.3 This Licence Agreement does not entitle you to purchase any alternative or replacement caravan except in the event of a total loss of the Caravan for which you are insured. Your insurer will then be entitled to arrange for us to site a replacement caravan of a similar type and size as the Caravan.

3 OUR GENERAL OBLIGATIONS

We agree that:

3.1 We will provide, maintain and keep in good state of repair the Pitch Services to the Caravan, except where these have to be interrupted for the purposes of repair or development or for other reasons beyond our control such as interruptions in the supply of services to us.

3.2 We will insure the Park against usual third-party risks to a minimum of £5,000,000 per claim.

3.3 We will charge for utilities in accordance with the requirements of the law and any relevant utility regulator, and we will never charge you more than the law allows. In particular:

3.3.1 electricity supplied to the Caravan through a meter will be charged at no more than the price we pay our supplier for the units you use, together with a fair share of our supplier's standing charges. This is the maximum resale price set by Ofgem, or by any rules that replace it. We make no profit on the electricity itself;

3.3.2 in addition, we will charge the administration charge shown in Part I for reading your meter and preparing your bill. It is separate from the price of the electricity and will be shown separately on your bill; and

3.3.3 the maximum resale price rules do not apply to liquefied petroleum gas (LPG) in bottles. If we supply you with LPG, we will charge the price shown on our price list at the time, which may include a profit element.

4 YOUR GENERAL OBLIGATIONS

You agree that you will:

4.1 Keep to the terms of this Licence Agreement and the Park Rules.

4.2 Use the Caravan only for holiday and recreational purposes. You must not use the Caravan as your only or main residence. When you sign this Licence Agreement, and at any other time we reasonably ask, you must give us satisfactory proof that your only or main residence is at the address registered with us as set out in Part I of this Licence Agreement or another permanent address that you may tell us from time to time. Satisfactory proof means a document such as a Council Tax bill, utility bill (sent to you at the address stated, not printed by you) or driving licence in your name. You will tell us promptly in writing if you change your only or main address or contact details.

4.3 Pay the Licence Fee and other charges due to us on the days set out in Part I. Payment is due to us by any of the payment means authorised by Part I of this Agreement.

4.4 Pay to us interest at 3% per annum over the published base rate of Barclays Bank plc from time to time (in Northern Ireland, the Ulster Bank) on any undisputed sums overdue from the due date to the date we actually receive such amounts from you, both before and after any judgment that we may obtain against you.

4.5 Insure the Caravan at your own expense against standard property damage insurable perils (including loss) and in addition cover for:

4.5.1 Accidental damage to underground service pipes and cables for which you are responsible;

4.5.2 Subsidence, heave or landslip of the site on which the Caravan stands;

4.5.3 Architects, surveyors, legal and other fees to rebuild or repair the Caravan;

4.5.4 Costs of removing debris, demolishing, propping up or supporting parts which have been damaged; and

4.5.5 Costs incurred in the delivery and/or re-siting of any structure at the insured premises.

4.5.6 Where Part I of this Agreement specifies that the Market Value Option applies, the sum insured for loss or damage to the Caravan from time to time shall not be less than the price which a willing buyer would pay you for the Caravan without the benefit of this Licence Agreement.

4.5.7 To insure the Caravan against all usual risks including fire and smoke, explosion, lightning and thunderbolt, earthquake, riot, civil commotion, strikes and labour disturbances, aircraft and other aerial devices or anything dropped or falling from them, storm or flood, theft or attempted theft, escape of water or oil from any fixed domestic water or heating installation, collision by any vehicle or animal, breakage or collapse of television or radio aerials, satellite receiving dishes, their fittings or masts, malicious acts or vandalism, water freezing in any fixed domestic water or heating installation, falling trees, telegraph poles or lampposts or any parts of them, accidental damage to underground service pipes and cables for which you are responsible, accidental breakage to fixed glass in windows, doors, fanlights and skylights and ceramic hobs in fixed appliances, accidental breakage of sanitary fixtures, subsidence, heave or landslip of the site on which the Caravan stands, accidental damage, architects, surveyors, legal and other fees to re-build or repair the Caravan, cost of removing debris, demolishing, propping up or supporting parts which have been damaged, the additional costs of rebuilding or repairing the damaged parts of the Caravan to meet any Government or Local Authority requirements, cost incurred in the delivery and/or re-siting of any structure at the insured premises, loss of rent and alternative accommodation, Property Owners Liability, Public and Employees Liability (e.g. to cover third parties employed for cleaning, maintenance, etc.).

4.5.8 Where Part I of this Agreement specifies that the New-for-Old Option applies, the sum insured for loss of or damage to the Caravan shall include the following:

4.5.8.1 the retail price on the Park of a new caravan of a similar type and size to the Caravan;

4.5.8.2 the cost of replacing any existing ancillary structures (for example steps, decking);

4.5.8.3 the cost of clearing wreckage from the Pitch and disposing of the Caravan destroyed by fire, natural disaster or other similar occurrence; and

4.5.8.4 the cost of delivery, siting and connecting the new Caravan (if not included in the retail price).

4.6 To insure at your own expense against Property Owners' Liability (including liability to any third parties employed to work in the Caravan) and Public Liability. The sum insured for these liabilities shall not be less than £5,000,000.

4.7 Unless you purchase an insurance product promoted or introduced by us, you agree to provide proof of insurance by providing us with a copy of your insurance details each year. Where proof of insurance is required, you agree to pay our fee of £35 plus VAT (£42 in total at the current rate of VAT) to check you have complied with your obligation to arrange insurance. We are not insurance experts and check only the name of the insured, period of cover and the sums insured. We assume no duty to you to check you have insured against the correct risks.

4.8 To keep the Caravan in a good state of repair and condition both visually and structurally and so as to retain its mobility, and in a safe, habitable state including the repair and maintenance of all installations and appliances and undertaking and/or commissioning all relevant periodic safety checks. In particular, to make sure all gas appliances are checked by a Gas Safe (or successor body) registered engineer.

4.9 Not to do or fail to do anything which might put us in breach of any condition of the Site Licence, which is always available on the Park in a conspicuous place. For example, the conditions of the Site Licence which are likely to affect you include those requiring the space between caravans to be kept clear, those prohibiting combustible structures between caravans, those regarding car parking and those requiring the underside of caravans to be kept clear.

4.10 To comply with all statutory requirements (including any relevant planning permissions) in relation to the Caravan and its installations and furnishings.

4.11 Not to carry out any building works at the Park or to erect any extension to the Caravan. If the Park Rules allow, you can erect a hut, fence, structure, TV aerial or clothes line and/or connect any services or utilities to the Caravan, subject to our prior written permission. We will only refuse our consent to such works if we think that we have a good reason to do so. If we refuse consent, we will tell you our reason(s). Clauses 16.3, 16.4 and 16.5 of this Licence Agreement explain your options if you do not agree.

4.12 To give us written notice of any work to be carried out to the Caravan by external contractors and to ensure all contractors employed by you provide us with the relevant documentation, so that we can check their insurance and competence in order to maintain a safe environment on the Park, at least 14 days before the contractors start work (or in the case of emergency, as much notice as possible).

4.13 To permit us to remove the Caravan from the Pitch in accordance with the rights we have under clauses 8, 10 and 12 of this Licence Agreement, disconnecting as necessary. To maintain standards on the Park and to prevent damage to the Park and its installations, any work in disconnecting, de-siting or removing the Caravan from the Pitch (even after termination of this Licence Agreement) or in siting it on another pitch must be done by us or by our contractor(s). However, where appropriate, you may then instruct another contractor to remove the Caravan from the Park. You agree to pay us for disconnecting and removing the Caravan from the Pitch or for moving the Caravan at your request. Our charges will be reasonable and based on the time spent and the work done and shall not exceed those of a written quotation for having the work carried out by an appropriately competent and suitably qualified and experienced independent contractor(s) and in accordance with industry guidance. We will provide you with a written quotation for any work in disconnecting, de-siting or removing the Caravan from the Pitch. If within 14 days of receiving our written quotation, you provide us with a written quotation for the same work to be carried out by an appropriately competent and experienced independent contractor(s) and in accordance with industry guidance, we will charge you no more than your quotation for the work.

4.14 To use the Caravan only during the period of year indicated in Part I of this Licence Agreement.

5 BEHAVIOUR STANDARDS

By entering into this Licence Agreement you agree to, and you must make sure that all people who use or visit the Caravan (including, in each case, children in their party) keep to, the following standards of behaviour:

5.1 To act in a courteous and considerate manner towards us, our staff and anyone visiting, using or working on the Caravan and/or the Park including other customers.

5.2 To supervise children so that they are not a nuisance or danger to themselves or other people using the Caravan and/or the Park.

5.3 Not to:

5.3.1 Commit any criminal offence (whether or not on the Park or in its vicinity) which causes your name to be entered on the Violent and Sex Offender Register or causes you to be subject to a Risk of Sexual Harm Order or

Child Abduction Warning Notice (or any register, order or notice succeeding these);

5.3.2 Use the Caravan in connection with any criminal activity or commit any other criminal offence (i.e. any offence not already subject to clause 5.3.1) at the Caravan, the Park or in its vicinity;

5.3.3 Commit any acts of vandalism or nuisance at the Caravan or on the Park;

5.3.4 Use fireworks at the Caravan or on the Park;

5.3.5 Keep or carry any firearm or any other weapon at the Caravan or on the Park;

5.3.6 Keep or use any unlawful drugs at the Caravan or on the Park;

5.3.7 Create undue noise or disturbance or commit antisocial behaviour at the Caravan or on the Park;

5.3.8 Carry on any trade or business from the Caravan or at the Park;

5.3.9 Permit anyone who is to your knowledge on the Violent and Sex Offender Register or subject to a Risk of Sexual Harm Order or a Child Abduction Warning Notice (or any register, order or notice succeeding these) to use or visit the Caravan.

5.4 You agree that if you or any of your Family Members or visitors or guests whom you have invited to the Park or to the Caravan break the behaviour standards listed above then we may terminate this Licence Agreement. Termination by us is dealt with by clause 10. Any serious breach may result in termination of this Agreement under clause 10.1.

6 SELLING THE CARAVAN

6.1 You cannot sell the Caravan to anyone to keep it on the Pitch or anywhere else on the Park. If you want to sell the Caravan you can do so:

6.1.1 To us but only if we agree, at a price agreed between you and us; or

6.1.2 To anyone you choose, on the basis that it is removed off the Park, so long as you arrange the disconnection and removal of the Caravan through us and pay our charges for disconnecting, de-siting and removing the Caravan from the Pitch in accordance with clause 4.13 above.

6.2 If you want to sell the Caravan you must write and tell us. You must tell us whether the Caravan is subject to finance and, if it is, give us the name of the finance company and the reference number of the finance agreement.

6.3 Within five Working Days of receiving your letter or email, we will tell you in writing whether we would like to buy the Caravan and, if so, the price we would pay. You do not have to accept our offer, and you are free to sell the Caravan for removal from the Park instead. If we buy the Caravan, we may only deduct from the purchase price sums which are lawfully due to us under this Licence Agreement and any sum needed to settle outstanding finance, and we will pay you within five Working Days of you providing vacant possession to us.

6.4 If you sell the Caravan for removal from the Park, we will agree a reasonable date with you for it to be disconnected and removed, and give you our written quotation under clause 4.13.

6.5 If you sell, give or transfer the Caravan in any other way, you will be in breach of this Licence Agreement. The new owner will have no agreement with us and no right to keep the Caravan on the Park, and the Caravan must be removed from the Park in accordance with clauses 4.13 and 12.

6.6 The rights to sell the Caravan contained in this clause 6 may be exercised by your personal representative(s) after your death.

7 GIVING THE CARAVAN AWAY

7.1 You cannot give the Caravan to anyone, including a Family Member, to keep on the Park, either during your lifetime or on your death (whether by leaving the Caravan in your will or as the result of the operation of the law relating to intestacy).

7.2 If anyone inherits the Caravan, including a Family Member, they will have no right to keep it on the Park, but your personal representative(s) may sell it in accordance with clause 6.

8 MOVING THE CARAVAN

8.1 Within the Agreement Period, we may wish to disconnect and move the Caravan to another part of the Park and this clause sets out the basis on which we may do that, for example because we are redeveloping an area of the Park, installing some facility or are required to comply with a local authority Site Licence condition, or for access to an area of the Park which cannot reasonably be gained by any other route.

8.2 If the Caravan has to be moved because of some emergency or because of works to be carried out by a third party over whom we have no control, such as a water supply or other utility company, we will give you as much notice as we can. If we have to disconnect and move the Caravan for any other reason, we will give you at least one month's notice in writing.

8.3 We will ensure that any temporary move to an alternative pitch of similar quality will be as short as reasonably practicable.

8.4 We will be responsible for all reasonable costs incurred in disconnecting and moving the Caravan.

8.5 Following the disconnection and movement of the Caravan, we are entitled to return the Caravan to its original Pitch or to site it permanently on another pitch. If the consequence of the redevelopment or maintenance work is that the original Pitch is less pleasant, or if the move is permanent, we must offer an alternative pitch of similar quality to the original Pitch as it was before the move.

8.6 We will always reconnect the Caravan after we have moved it.

8.7 Clauses 16.2, 16.3, 16.4 and 16.5 of this Licence Agreement explain your options if there is any dispute arising under clause 8.5 above about the standard of the original or alternative pitches.

9 TERMINATION OF THE LICENCE AGREEMENT

The Licence Agreement may come to an end in any of the following ways:

9.1 Because the Agreement Period has come to an end.

9.2 By the sale or gift of the Caravan or by you losing ownership of it.

9.3 By us terminating it because you have broken your obligations under this Licence Agreement.

9.4 By you giving us notice in writing of your wish to end it.

10 WHEN WE MAY TERMINATE THE LICENCE AGREEMENT

10.1 If you are in serious breach of your obligations under this Licence Agreement and the breach is not capable of being remedied or is such that it causes a breakdown in the relationship between you and us (for example violence or intentional damage to property), we may serve upon you reasonable notice in writing to terminate this Licence Agreement. In deciding what period of notice is reasonable, we shall have due regard to the nature of the breach and other relevant circumstances.

10.2 If you are in breach of any of your obligations under this Licence Agreement which is capable of being remedied (for example, a failure to comply with the behaviour standards in clause 5 which has not caused a breakdown in the relationship between you and us or a failure to repair the Caravan (clause 4.8) or to pay Licence Fees promptly (clause 4.3)), we may write giving you warning, specifying the breach and asking you to remedy the breach within a reasonable and specified time. If you do not comply with that warning and the breach is either serious and/or amounts to persistent breaches of obligation, which taken individually would be minor but which taken together cause a breakdown in the relationship between you and us, we are entitled to write to you to end this Licence Agreement and to require you to make arrangements with us for the removal of the Caravan from the Park within one month.

11 WHEN YOU MAY TERMINATE THE LICENCE AGREEMENT

11.1 You are entitled to bring this Licence Agreement to an end by writing to us giving us not less than one month's notice.

11.2 However, if we have broken our obligations to you under this Licence Agreement and if as the result you are entitled to end this Licence Agreement you may give us a lesser period of notice but should still give us as much notice as possible.

11.3 You may also give us a lesser period of notice if you decide not to replace your Caravan on the Pitch following a total loss for which you are insured under clause 4.5. Again you should still give us as much notice as possible.

12 THE CONSEQUENCES OF TERMINATION OF THE LICENCE AGREEMENT

12.1 You will arrange with us for the disconnection and removal of the Caravan and all other property of yours from the Park within one month after termination of this Licence Agreement, however that comes about, except that where this Licence Agreement ends at the end of the Agreement Period, the Caravan must be removed on or before the last day of the Agreement Period. You must comply with clause 4.13 in doing so.

12.2 Payment of our costs in the disconnection or removal of the Caravan from the Pitch will not be sought if we are proven to be in serious breach of our obligations under this Agreement.

12.3 If following termination of this Licence Agreement you fail to arrange the disconnection and removal of the Caravan through us, we are entitled to disconnect and remove it ourselves after giving you not less than 14 days' notice in writing of our intention to do so. If the Independent Surveyor confirms to us that the Caravan is not capable of selling for a sum sufficient to cover the costs of removal and sale, then you authorise us to dispose of the Caravan as we see fit and you will repay to us the costs we incur (acting reasonably) in the removal and disposal of the Caravan.

12.4 Otherwise we may sell the Caravan at the best price reasonably achievable in the circumstances, after giving you at least three months' written notice sent by recorded delivery. The notice will say where the Caravan is, the date on or after which we intend to sell it, and any amount you owe us. Before selling, we will check with any finance provider named in Part I and settle any finance from the proceeds.

12.5 We may charge you reasonable storage fees from the date this Licence Agreement ends until the date the Caravan is removed from the Park.

12.6 Where we sell the Caravan, we will account to you for the sale proceeds we receive less (a) our reasonable costs of storage under clause 12.5, (b) our reasonable costs of disconnection, removal and disposal or sale and (c) any other undisputed sum due from you to us.

12.7 Refunds of the Licence Fee. If this Licence Agreement ends before the end of the Agreement Period:

12.7.1 if it ends because we have broken our obligations under this Licence Agreement, we will refund the part of the Licence Fee you have paid for the days left in the Agreement Period;

12.7.2 if it ends for any other reason (including where you end it under clause 11 or we end it under clause 10), we will refund the percentage of the Licence Fee shown in the table below (100% if it ends before 1 March 2027), less any part of the Licence Fee you have not paid and any other sums properly due to us. The refund depends on the date this Licence Agreement actually ends, not the date you tell us you want to leave.

If this Licence Agreement ends	Refund of the Licence Fee
Before 1 April	80%
In April	70%
In May	60%
In June	50%
On or after 1 July	No refund (unless 12.7.1 or 12.7.4 applies)

12.7.3 No refund is due where we buy the Caravan from you, because the price we agree takes account of it. We will pay any refund within 14 days of the Caravan being removed from the Park.

12.7.4 If we let the Pitch to someone else for any part of the Agreement Period you have paid for, we will also refund what we receive for that part, up to the amount you paid for it. The total refund for any period will never be more than you paid for it.

12.8 Where we terminate this Licence Agreement as a result of your serious or persistent breach of its terms, you will remain responsible for all sums properly due to us up to the date of termination. Any refund of the Licence Fee will be made on the scale in clause 12.7.2.

12.9 We have the right to retain the Caravan until you have paid any undisputed sum due to us on termination of this Agreement.

13 PARK RULES

13.1 It may be necessary or desirable to change the Park Rules from time to time, including for reasons of health and safety, the efficient running of the Park, environmental issues, local authority requirements, and/or changes in law or regulations or in the interpretation of law and regulations imposed upon us, in which case we will notify you in writing to your current address.

13.2 Any changes made to the Park Rules after the signing of this Licence Agreement may affect you because you will be required to comply with the changed Park Rules, but will not affect anything else to which you are entitled under this Licence Agreement.

14 HIRING OUT THE CARAVAN

14.1 Part I of this Licence Agreement makes it clear: whether or not you are allowed to Hire out the Caravan on a voluntary or a compulsory basis and if so, whether you must Hire out the Caravan exclusively through our agency.

14.2 If Hiring out is permitted, whether compulsorily or voluntarily, it will take place on the basis of a separate agreement between us.

15 KEYS

15.1 We may hold a key to your Caravan.

15.2 We may use the key for any purpose you authorise, for example if you ask us to allow a visitor authorised by this Agreement to access the Caravan or to carry out agreed repairs.

15.3 We may also use the key in an emergency, such as an immediate concern for the health and safety of any person in the Caravan, to carry out urgent repairs or preventative work, or to check and secure the Caravan if it appears to be insecure.

15.4 We will take reasonable care of your key and when accessing the Caravan.

16 COMPLAINTS AND DISPUTES

In the event of a dispute that cannot be resolved between you and us, this Licence Agreement provides for disputes to be resolved by the following means:

16.1 If you have any complaint relating to this Licence Agreement we encourage you to discuss it with us. The contact to whom you should refer your complaint is given in Part I of this Licence Agreement.

16.2 We may refer questions arising under clauses 8.5 or 12.3 to an Independent Surveyor.

16.3 We may agree between us to refer any dispute to an arbitrator (or in Scotland, an arbiter).

16.4 We may agree to refer any dispute to an Alternative Dispute Resolution service. If we have not been able to resolve a dispute with you then we will give you details of any service we recommend, but this does not prevent you from suggesting another for us to consider.

16.5 The above are all alternatives to going to Court, but if you prefer to go to Court, this Licence Agreement does not in any way prevent you from doing so.

17 COMMUNICATIONS

We agree that any letters or other communications between us shall be sent to the address appearing in Part I unless we have told you or you have told us of another address to be used instead. Letters and other communications will not be addressed to you at the Caravan.

18 STATUTORY RIGHTS

Nothing in these conditions will reduce your statutory rights as a consumer. For further information about your statutory rights contact your local authority Trading Standards Department or Citizens Advice.

SELLERS LEISURE
Thriftwood Country Park
Plaxdale Green Road, Sevenoaks
TN15 7PB, KENT
www.sellersleisure.com
Tel: 01732 822261

SIGNATURES

This is a legally binding Agreement.

Before you sign, you should read each page carefully and initial against it to confirm your understanding and acceptance. You will be bound by the Agreement once you sign below, so you should only do so if you fully understand and agree to its terms and conditions.

Please ask us before you sign:

- If you do not fully understand anything
- If you think we have agreed anything which is not included

Park Owner (or representative)	Caravan Owner(s) (all owners must sign)
Signature	Signature/s
Name	Name/s
Date of Agreement (dd/mm/yyyy)	Date (dd/mm/yyyy)

There should be two signed copies of this Licence Agreement: one kept by you and one for us.

Attached: Park Rules; Frequently Asked Questions about holiday use

FREQUENTLY ASKED QUESTIONS ABOUT HOLIDAY USE

We are confident you will enjoy many happy holidays in your Caravan. This is a holiday park and it is important you consider what that means. The following questions and answers explain the holiday use requirement.

Q. What can my Caravan be used for?

A. Caravans at our Park can only be used for holiday purposes. This means the Caravan may not be someone's main residence. That is why we ask you about the address of your main residence and will continue to do so while you own the Caravan.

Q. What is a holiday?

A. A holiday is a period of recreation away from your main residence, during which no work is done.

Q. How long can a holiday be?

A. Individual circumstances vary. The point is that someone who is on holiday has their main residence elsewhere where they mainly live.

Q. How frequently can I have a holiday?

A. There is no limit to the number of holidays which can be taken in the Caravan provided that it is not used as someone's only or main place of residence.

Q. Can I work locally and my children go to local schools?

A. No, as commuting to work or school from this Park would be taken as strongly indicating the Caravan is being used as someone's main residence.

Q. Can I register with the doctor locally?

A. Of course, people get ill on holiday and may use the local doctor as a temporary patient. It should not be necessary for someone with a main residence elsewhere to register with the doctor for holiday periods unless they have particular health requirements.

Q. I am retired. Can I use the Caravan all the time?

A. Being retired does not mean you are on holiday. The test is whether you have a main residence elsewhere.

Q. My main residence is overseas. Does this count?

A. Yes, but all the facts are relevant when deciding whether the overseas property or the Caravan is your main residence. These would include whether you own the overseas property or, if it is rented, then how long you have rented it for, how much time you spend in the Caravan and how much in the overseas property.

Q. Can I run a business from the Caravan?

A. Definitely not. This would not be consistent with holiday use. However, if someone wanted to keep in touch with their work or business whilst they are on holiday, for example, they could use a laptop, tablet or smartphone.

Q. Can I have post delivered to the park?

A. We do not facilitate this. If post is delivered as a matter of course, this would indicate the Caravan is being used as an only or main place of residence.

Q. Can I register for Council Tax in order to obtain Housing Benefit?

A. No. Business Rates and not Council Tax are charged for Caravans. Paying Council Tax or receiving Housing Benefit to pay the Licence Fees would be taken as strongly indicating the Caravan is being used as a main residence.

Q. What happens if I break the holiday rule?

A. Your Licence Agreement with us contains your undertaking to comply with the holiday rule. If you broke that we would ask you to stop doing so. If you were to fail to comply, we would be entitled to terminate the Licence Agreement and to ask you to remove the Caravan. The planning authority might also take action against you for breach of the holiday rule.

Q. What happens if my circumstances change?

A. Your Licence Agreement does not allow the Caravan to be used as a main residence, even on a temporary basis.

Thank you for choosing Dymchurch Holiday Park. We look forward to welcoming you for the 2027 season.

Any questions? Call the Park Office on 01303 905480 or email info@dymchurchholidaypark.com

You confirm your understanding and agreement. Initials